

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

FIRST SECTION

CASE OF KINZHABAYEVA AND OTHERS v. RUSSIA

(Applications nos. 35579/21 and 19 others –
see appended list)

JUDGMENT

STRASBOURG

11 April 2024

This judgment is final but it may be subject to editorial revision.



In the case of Kinzhabayeva and Others v. Russia,

The European Court of Human Rights (First Section), sitting as a Committee composed of:

Lətif Hüseynov*, President*,
Ivana Jelić,
Erik Wennerström*, judges*,

and Viktoriya Maradudina, *Acting Deputy Section Registrar,*

Having deliberated in private on 21 March 2024,

Delivers the following judgment, which was adopted on that date:

PROCEDURE

1. The case originated in applications against Russia lodged with the Court under Article 34 of the Convention for the Protection of Human Rights and Fundamental Freedoms ("the Convention") on the various dates indicated in the appended table.

2. The Russian Government ("the Government") were given notice of the applications.

THE FACTS

3. The list of applicants and the relevant details of the applications are set out in the appended table.

4. The applicants complained of the disproportionate measures taken against them as organisers or participants of public assemblies. They also raised other complaints under the provisions of the Convention.

THE LAW

I. JOINDER OF THE APPLICATIONS

5. Having regard to the similar subject matter of the applications, the Court finds it appropriate to examine them jointly in a single judgment.

II. JURISDICTION

6. The Court observes that the facts giving rise to the alleged violations of the Convention occurred prior to 16 September 2022, the date on which the Russian Federation ceased to be a party to the Convention. The Court therefore decides that it has jurisdiction to examine the present applications (see *Fedotova and Others v. Russia* [GC], nos. 40792/10 and 2 others, §§ 68-73, 17 January 2023).

III. ALLEGED VIOLATION OF ARTICLE 11 OF THE CONVENTION

7. The applicants complained principally of disproportionate measures taken against them as organisers or participants of public assemblies, namely their arrest in relation to the dispersal of these assemblies and their conviction for administrative offences. They relied, expressly or in substance, on Article 11 of the Convention.

8. The Court refers to the principles established in its case-law regarding freedom of assembly (see *Kudrevičius and Others v. Lithuania* [GC], no. 37553/05, ECHR 2015, with further references) and proportionality of interference with it (see *Oya Ataman v. Turkey*, no. 74552/01, ECHR 2006-XIV, and *Hyde Park and Others v. Moldova*, no. 33482/06, 31 March 2009).

9. In the leading cases of *Frumkin v. Russia,* no. 74568/12, ECHR 2016 (extracts), *Navalnyy and Yashin v. Russia,* no. 76204/11, 4 December 2014 and *Kasparov and Others v. Russia,* no. 21613/07, 3 October 2013, the Court already found a violation in respect of issues similar to those in the present case.

10. Having examined all the material submitted to it, the Court has not found any fact or argument capable of persuading it to reach a different conclusion as to the admissibility and merits of these complaints. Having regard to its case-law on the subject, the Court considers that in the instant case the interferences with the applicants' freedom of assembly were not "necessary in a democratic society".

11. These complaints are therefore admissible and disclose a breach of Article 11 of the Convention.

IV. OTHER ALLEGED VIOLATIONS UNDER WELL-ESTABLISHED CASE-LAW

12. The applicants submitted other complaints which also raised issues under the Convention and its Protocols, given the relevant well-established case-law of the Court (see appended table). These complaints are not manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention, nor are they inadmissible on any other ground. Accordingly, they must be declared admissible.

13. Having examined all the material before it, the Court concludes that these complaints also disclose violations of the Convention and its Protocols in the light of its findings in *Butkevich v. Russia*, no. 5865/07, §§ 63-65, 13 February 2018, *Tsvetkova and Others v. Russia*, nos. 54381/08 and 5 others, §§ 115-31, 10 April 2018, and *Korneyeva v. Russia*, no. 72051/17, §§ 34-36, 8 October 2019, as to various aspects of unlawful deprivation of liberty of organisers or participants of public assemblies; *Karelin v. Russia*, no. 926/08, §§ 58-85, 20 September 2016, concerning the absence of a

prosecuting party in the proceedings under the Code of Administrative Offences (the CAO); and *Martynyuk v. Russia*, no. 13764/15, §§ 38-42, 8 October 2019, relating to the lack of suspensive effect of an appeal against the sentence of administrative detention.

V. REMAINING COMPLAINTS

14. Some applicants raised further additional complaints under Article 6 of the Convention concerning other aspects of fairness of the administrative-offence proceedings. In view of the findings in paragraphs 10-11 and 13 above, the Court considers that there is no need to deal separately with these remaining complaints.

VI. APPLICATION OF ARTICLE 41 OF THE CONVENTION

15. Regard being had to the documents in its possession and to its case-law (see in particular *Navalnyy and Others v. Russia* [Committee], nos. 25809/17 and 14 others, § 22, 4 October 2022), the Court finds it reasonable to award the sums indicated in the appended table.

FOR THESE REASONS, THE COURT, UNANIMOUSLY,

1. *Decides* to join the applications;

2. *Holds* that it has jurisdiction to deal with these applications as they relate to facts that took place before 16 September 2022;

3. *Declares* the complaints under Article 11 of the Convention and the other complaints under the well-established case-law of the Court, as set out in the appended table, admissible, and *finds* that there is no need to examine separately the remaining complaints under Article 6 of the Convention;

4. *Holds* that these applications disclose a breach of Article 11 of the Convention;

5. *Holds* that there has been a violation of the Convention and the Protocols thereto as regards the other complaints raised under the well-established case-law of the Court (see appended table);

6. *Holds*

(a) that the respondent State is to pay the applicants, within three months, the amounts indicated in the appended table, to be converted into the currency of the respondent State at the rate applicable at the date of settlement;

(b) that from the expiry of the above-mentioned three months until settlement simple interest shall be payable on the above amounts at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points.

Done in English, and notified in writing on 11 April 2024, pursuant to Rule 77 §§ 2 and 3 of the Rules of Court.

Viktoriya Maradudina	Lətif Hüseynov
Acting Deputy Registrar	President

APPENDIX

List of applications raising complaints under Article 11 of the Convention
(disproportionate measures against organisers and participants of public assemblies)

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative / criminal offence	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
1.	35579/21 28/06/2021	**Yuliya Nikolayevna KINZHABAYEVA** 1997	Bochilo Anna Yevgenyevna Barnaul	Rally "Free Navalnyy" Chelyabinsk 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Chelyabinsk Regional Court 28/04/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	3,500
2.	37925/21 16/07/2021	**Andrey Gennadyevich SUKHANOV** 1984	Memorial Human Rights Centre Moscow	Rally "Free Navalnyy Volgograd 23/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Volgograd Regional Court 13/05/2021	Art. 5 (1) - unlawful detention - escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 3.30 p.m. to 11.30 p.m. on 23/01/2021	4,000
3.	38631/21 19/07/2021	**Ilya Borisovich PAKHOMOV** 1993	Gimadi Vyacheslav Ilyich Vilnius	Rally "Free Navalnyy Moscow 17/01/2021	article 19.3 § 1 of CAO	administrative detention of 10 days	Moscow City Court 18/03/2021	Art. 5 (1) - unlawful detention - escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances": - from 7.35 p.m. to 10.20 p.m. on 17/01/2021, while a record of administrative offence was drawn on 22/02/2021; - from 11.30 p.m. on 27/01/2021 to 9.30 a.m. on 28/01/2021, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	5,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative / criminal offence	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
4.	40544/21 30/07/2021	**Angelina Sergeyevna LEVINA** 1992	Zhdanov Ivan Yuryevich Vilnius	Rally "Free Navalnyy Tambov 31/01/2021	article 20.2 § 6.1 of CAO	administrative detention of 15 days	Tambov Regional Court 05/02/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	5,000
5.	40585/21 27/07/2021	**Marina Petrovna LIMAR** 1987	Aksenova Darya Dmitriyevna Kolomna	Rally "Free Navalnyy Moscow, Komsomolskaya Square 31/01/2021	article 20.2 § 6.1 of CAO	fine of RUB 15,000	Moscow City Court 24/03/2021	Art. 5 (1) - unlawful detention - escorting to a police station for the purpose of drawing up a record of administrative offence on 31/01/2021, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
6.	40677/21 25/07/2021	**Galina Yevgenyevna MANENKOVA** 1971	Mikhaylova Varvara Dmitriyevna St Petersburg	Rally "Free Navalnyy Smolensk 23/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Smolensk Regional Court 10/03/2021	Art. 5 (1) - unlawful detention – detained and escorted to a court on 29/01/2021. After the applicant had voluntary come to the police station, she was escorted to the first-instance hearing in her administrative-offence case, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
7.	40941/21 28/07/2021	**Ulyana Dmitriyevna KOLUSENKO** 1993	Sotnikov Dmitriy Valeryevich Moscow	Rally "Free Navalnyy Moscow 02/02/2021	article 20.2 § 6.1 of CAO	administrative detention of 10 days	Moscow City Court 11/02/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	5,000

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8.	41461/21 05/08/2021	**Anastasiya Igorevna KRIVENKO** 1999	Pomazuyev Aleksandr Yevgenyevich Vilnius	Rally "Free Navalnyy Tambov 31/01/2021	article 20.2 § 6.1 of CAO	administrative detention of 7 days	Tambov Regional Court 17/02/2021	Art. 5 (1) - unlawful detention - escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 1.30 p.m. on 31/01/2021 to 1.50 p.m. on 01/02/2021, hearing in the applicant's administrative-offence case, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings, Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - the sentence of administrative detention imposed on the applicant was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO	5,000
9.	42216/21 09/08/2021	**Timur Shakhinovich BABAYEV** 1996		Rally "Free Navalnyy Moscow 31/01/2021	article 20.2 § 6.1 of CAO	administrative detention of 10 days	Moscow City Court 09/02/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	5,000
10.	42291/21 07/08/2021	**Elina Aleksandrovna PULUDI** 1963		Rally "Free Navalnyy" Kazan 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Supreme Court of the Tatarstan Republic 24/03/2021	Art. 5 (1) - unlawful detention - escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 2.00 p.m. on 31/01/2021 to 01/02/2021, hearing in the applicant's administrative-offence case; the applicant spent 7 hours in the police van	4,000

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11.	43002/21 23/08/2021	**Yaroslav Igorevich TIKHONOV** 1988	Zhdanov Ivan Yuryevich Vilnius	Rally "Free Navalnyy" Yaroslavl 23/01/2021 Rally "Free Navalnyy Yaroslavl 31/01/2021	article 20.2 § 5 of CAO article 20.2 § 5 of CAO	fine of RUB 10,000 fine of RUB 10,000	Yaroslavl Regional Court 14/05/2021 Yaroslavl Regional Court 11/05/2021	Art. 5 (1) - unlawful detention - escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 2.00 p.m. to 6.00 p.m. on 31/01/2021	4,000
12.	43449/21 23/08/2021	**Tatyana Yuryevna SHISHKINA** 1966	Zhdanov Ivan Yuryevich Vilnius	Rally "Free Navalnyy" Moscow 31/01/2021	article 20.2 § 6.1 of CAO	fine of RUB 10,000	Moscow City Court 02/04/2021	Art. 5 (1) - unlawful detention - escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 12.30 p.m. on 31/01/2021 to 01/02/2021 in the morning, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
13.	43462/21 23/08/2021	**Dmitriy Segeyevich BATALIN** 1995	Zhdanov Ivan Yuryevich Vilnius	Rally "Free Navalnyy" Yaroslavl 23/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Yaroslavl Regional Court 15/04/2021	Art. 5 (1) - unlawful detention - escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 3.30 p.m. to 10.30 p.m. on 23/01/2021	4,000

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14.	43771/21 23/08/2021	**Roman Ramilevich NAZIROV** 1995	Zhdanov Ivan Yuryevich Vilnius	Rally "Free Navalnyy" Tula 23/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Tula Regional Court 02/03/2021	Art. 5 (1) - unlawful detention - escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 2.00 p.m. to 10.00 p.m. on 23/01/2021, hearing in the applicant's administrative-offence case, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
15.	43773/21 23/08/2021	**Mikhail Aleksandrovich KREYNES** 1987	Zhdanov Ivan Yuryevich Vilnius	Rally "Free Navalnyy" Moscow 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 16/04/2021	Art. 5 (1) - unlawful detention - escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 3.00 p.m. on 31/01/2021 to 1.00 a.m. on 01/02/2021, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
16.	43915/21 23/08/2021	**Rasul Ayratovich MULLATAGIROV** 1994	Zhdanov Ivan Yuryevich Vilnius	Rally "Free Navalnyy" Ufa 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Supreme Court of the Bashkortostan Republic 05/05/2021	Art. 5 (1) - unlawful detention - escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 12.50 p.m. to 3.50 p.m. on 31/01/2021, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000

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17.	48347/21 25/07/2021	**Aleksandr Aleksandrovich BYKOV** 1990	Aksenova Darya Dmitriyevna Kolomna	Rally "Free Navalnyy" Moscow 31/01/2021	article 20.2 § 6.1 of CAO	administrative detention of 8 days	Moscow City Court 13/05/2021	Art. 5 (1) - unlawful detention - escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 1.20 p.m. on 31/01/2021 to 01/02/2021, hearing in the applicant's administrative-offence case, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	5,000
18.	49717/21 17/09/2021	**Dmitriy Gennadyevich CHESNOKOV** 1998	Kosnyrev Vladislav Vladimirovich Syktyvkar	Rally "Free Navalnyy" Syktyvkar 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 12,000	Supreme Court of the Komi Republic 17/03/2021	Art. 5 (1) - unlawful detention - escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 1.40 p.m. to 7.40 p.m. on 31/01/2021, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
19.	50261/21 24/09/2021	**Viktor Andreyevich SPERANSKIY** 1991	Aksenova Darya Dmitriyevna Kolomna	Rally "Free Navalnyy" Moscow 23/01/2021	article 20.2 § 6.1 of CAO	fine of RUB 15,000	Moscow City Court 26/04/2021	Art. 5 (1) - unlawful detention - escorting to a police station for the purpose of drawing up a record of administrative offence on 23/01/2021, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000

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20.	51223/21 08/10/2021	**Aleksandr Vladimirovich VELIKIY** 1991	Zhdanov Ivan Yuryevich Vilnius	Rally "Free Navalnyy" Kazan 31/01/2021	article 20.2 § 6.1 of CAO	fine of RUB 10,000	Supreme Court of the Tatarstan Republic 14/04/2021	Art. 5 (1) - unlawful detention - escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 3.00 p.m. on 31/01/2021 to 01/02/2021, hearing in the applicant's administrative-offence case	4,000

[1] Plus any tax that may be chargeable to the applicants.